

10.12.3 Where the decision is to refuse the repayment or remission application

Following the applicant exercising the Right to be Heard, the customs officer must communicate the grounds for refusal to the applicant. The decision to refuse must be given in writing and must clearly outline the reasons for the refusal.

The applicant must also be informed of their right of appeal. [Details of the appeal procedure](#) is set out on the Revenue website.

10.13 Payment of interest

Article 116 (6) of the UCC provides that repayment of import duties is not to give rise to the payment of interest.

However, interest is payable where a decision granting repayment is not implemented within three months of the date on which that decision was taken, unless the failure to meet the deadline was outside the control of the customs authorities.

10.14 Application for refund following completion of a Customs Audit

If the original declaration was made in AIS then the same two-step process is required; amendment or invalidation followed by refund application. Therefore, the short CI procedure should not be used in this instance.

The following material is either exempt from or not required to be published under the Freedom of Information Act 2014.

[...]

10.16 Repayment or Remission granted in error

Where a repayment or remission was granted in error the original debt must be re-instated unless this is time-barred under Article 103 of the UCC.

10.17 Reports to be provided to the Commission

A report together with a short summary must be provided where the customs authority:

- grants repayment or remission for an amount more than €50,000 where the failure to apply the reduced or zero rate of duty to the goods was the result of an error on the part of the Customs Authorities themselves.

This information must be forwarded to the Commission during the first and third quarters of each year for all cases arising during the preceding half year. TOR Unit